

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: July 23, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Premier Financial Services, LLC vs. 520 Capital, LLC., 25-01534382	Plaintiff applies for a writ of possession after hearing against Defendant David Kent Riemann aka Dave Kent Riemann. (Code Civ. Proc. § 512.020.) The property sought to be possessed is a 2012 Mercedes Benz SLS AMG Roadster, VIN WDDRK7HA0CA009440 (the "Vehicle"). On or about August 28, 2023, Defendant 520 CAPITAL, LLC, a California limited liability company ("520 Capital"), executed and delivered to Plaintiff an Open End Motor Vehicle Lease Agreement (the "Lease") for the lease of the Vehicle. Pursuant to the Lease, Defendant 520 Capital agreed to make a first month lease payment of \$5,273.29 due August 30, 2023, and fifty-eight (58) monthly payments in the sum of \$2,636.64 due on the 30th of each month, commencing on September 30, 2023.

		Defendant breached the Lease by failing to make said payments. Defendant David Kent Riemann aka Dave Kent Riemann was the Guarantor on the Lease. Plaintiff has performed all of its obligations under the terms of the Lease, except as excused or prevented by the conduct of 520 Capital. 520 Capital breached the Lease. Plaintiff has been damaged in the total amount of \$141,466.60 plus prejudgment interest. Defendants have refused to return the Vehicle which has a value of \$93,900.00. Plaintiff believes that Defendants are in possession of the Vehicle at 17 Cornflower Street, Coto De Caza, CA 92679. Code Civ. Proc. Section 512.010 provides the statutory framework for an application for a writ of possession. Pursuant to subd. (b)(5) of Code Civ. Proc. Section 512.010, the application must include a statement that the property has not been taken under a statute for a tax, assessment, or fine. Here, Plaintiff's application or supporting documents fail to contain such a statement. Moreover, Plaintiff has the burden of proof on the prima facie case. (Code Civ. Proc. § 512.060.) As Plaintiff fails to comply with Code Civ. Proc. Section 512.010, Subd. (b)(5), a writ cannot be granted and the Application for Writ of Possession is DENIED WITHOUT PREJUDICE. The Case Management Conference is continued to August 20, 2027 at 1:30 p.m. <i>Moving Party to give notice.</i>
101	Ally Bank vs. Carmona, 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Plaintiff has filed a proof of service showing that the Summons, Complaint, and Notice of Application for Writ of Possession and Hearing were served by substituted service on May 24, 2026 after personal service could not with reasonable diligence be effected. The documents were thereafter mailed on May 28, 2026 and service was therefore complete on June 8, 2026. Defendant has failed to file any opposition. Here, the Declaration of Fernando Caballero establishes that Defendant entered into a contract with the Car Castle dealership for the purchase of the subject vehicle and secured financing for the purchase through Plaintiff. (Declaration of Fernando Caballero ¶ 6.) The dealership has assigned all of its interest in the contract to Plaintiff. (Ibid.) Pursuant to the terms of the contract, upon default of any provision thereof, Plaintiff has the right to immediate possession of the subject vehicle. (Id. ¶ 8.) Defendant is in

		default for failing to make any of the required payments since October 8, 2024 and the sum of \$72,730.46 remains due and unpaid to Plaintiff. (Id. ¶ 9.) Plaintiff's files reflect that Defendant resides at 15543 Rayen Street, #28, North Hills, California 91343 and to the best of Plaintiff's knowledge, that is the current location of the subject vehicle. (Id. ¶ 13.) Plaintiff has established the probable validity of prevailing on its claim to possession of the subject vehicle. Thus, Plaintiff's Application for Order for Writ of Possession is GRANTED. The Court finds that Defendant has no interest in the subject vehicle and therefore waives the requirement of Plaintiff's undertaking. (Code Civ. Proc., § 515.010(b).) The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
102	Daniels vs. Balderas, 25-01515105	<i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>
103	Alpine Equipment Funding, Inc. vs. Guerra, 23-01328771	<i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>
104	Foroughi vs. Mercedes-Benz USA, LLC, 25-01535962	<i>Continued to September 17, 2026 at 1:30 p.m. No further briefing allowed.</i>
105	Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893	<i>Continued to September 10, 2026 at 1:30 p.m. No further briefing allowed.</i>
106	Revelo De Rosales vs. American Honda Motor Co., Inc., 24-01444493	Defendant AMERICAN HONDA MOTOR CO., INC. ("AHM") seek an order compelling Plaintiffs to produce their 2023 Honda Ridgeline, VIN: 5FPYK3F88PB062437 for inspection and non-destructive testing at Buena Park Honda located at located at 6411 Beach Blvd., Buena Park, CA 90621 within 14-days. AHM seeks monetary sanctions against Plaintiffs and/or their counsel of record Prestige Legal Solutions, P.C. in the amount of \$2,028.00 pursuant to CCP § 2023.010 subd. (d) and 2031.300 subd. (c) for failing to produce the Subject Vehicle for inspection. Defendant American Honda Motor Co., Inc. seeks an order compelling the deposition of Plaintiff MARTA E. REVELO DE ROSALES ("Plaintiff") pursuant to CCP §§ 2025.450, subdivision (a), and 2025.480, subdivision (a), for an order compelling Plaintiff's deposition within 7-days. AHM seeks

monetary sanctions against Plaintiff MARTA E. REVELO DE ROSALES and/or Plaintiff's counsel of record Prestige Legal Solutions, P.C. in the amount of \$2,069 pursuant to CCP §§ 2023.030 and 2025.450 subdivision (g)(1) for failing to produce Plaintiff for deposition.

Defendant American Honda Motor Co., Inc. ("AHM") seeks order compelling the deposition of Plaintiff FRANCIS O. ROSALES ("Plaintiff") pursuant to CCP §§ 2025.450, subdivision (a), and 2025.480, subdivision (a), for an order compelling Plaintiff's deposition within 7-days, all as shown in the supporting declaration. AHM seeks monetary sanctions against Plaintiff FRANCIS O. ROSALES and/or Plaintiff's counsel of record Prestige Legal Solutions, P.C. in the amount of \$2,069 pursuant to CCP §§ 2023.030 and 2025.450 subdivision (g)(1) for failing to produce Plaintiff for deposition.

VEHICLE INSPECTION

Here, Plaintiff represents that the Defendant's Motion is moot, because the parties have agreed to an inspection of the vehicle on 8/18/2026. (Decl. of Dias ¶ 8.) Notably, trial is set to commence on 8/31/2026 and the failure to complete this vehicle inspection has already resulted in one trial continuance. See ROA 60. To that end, despite representations that the vehicle inspection will occur, the Court hereby orders that it occurs on 8/18/2026. The Court also orders sanctions against Plaintiff and Plaintiff's counsel, in the amount of \$798 to be paid within 20 days. It should not take nine (9) months (11/11/2025 Demand served) and a trial continuance to schedule a vehicle inspection, when the vehicle is the primary issue in the case.

DEPOSITIONS:

Defendant cites to CCP § 2025.450 and CCP § 2025.480 as authority for the requested relief.

Here, on October 22, 2025, AHM noticed the deposition of Plaintiff Marta E. Revelo De Rosales (Rein Decl. ¶ 2.) Apparently because Defendant unilaterally set the deposition, Plaintiffs objected and requested a meet and confer as to available dates. (Dias Decl. ¶ 2.) Despite several inquiries about dates by Defendants, Plaintiff did not provide dates until 7/2/2026. As of today's date, this Court is still in the dark as to whether the depositions actually occurred, or will occur.

To the extent they have not, the Court orders Plaintiffs' deposition to take place within 20 days.

		Sanctions are warranted against Plaintiffs and Counsel of Record, joint and severally, in the amount of \$839. While Attorney Dias declares, "Any delay in scheduling was therefore the result of confirming Plaintiff's availability and the transition of handling counsel—not any refusal to participate in discovery"—this excuse is simply not adequate. Plaintiffs have caused delay in this case and caused more law and motion work by all involved, including the Court. <i>Defendant to provide notice.</i>
107	Jarvis Restoration vs. State Farm Fire and Casualty Company, 25-01455700	Defendant, State Farm General Insurance Company ("State Farm"), moves to strike the claim for punitive damages at paragraphs 52, 58, 59, 60, and in the Prayer at paragraph 5 of Plaintiff, Jarvis Restoration's Second Amended Complaint. State Farm asserts that the factual allegations in the First Amended Complaint and Second Amended Complaint ("SAC") are the same, and that Plaintiff added 11 new paragraphs, paragraphs 50-60, which consist of conclusory allegations, and allegations on information and belief that it "believes" State Farm is malicious, oppressive and/or fraudulent, but that Plaintiff does not allege actual facts, and that Plaintiff's belief, unsupported by facts, is not sufficient to allege a claim for punitive damages which requires factual allegations. State Farm also asserts that Plaintiff still does not identify any officer, director or managing agent who "authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice" in the SAC, and that because there are no facts on which Plaintiff could truthfully or in good faith plead that would entitle Plaintiff to punitive damages, this motion should be granted with prejudice. Plaintiff, Jarvis Restoration ("Plaintiff" or "Jarvis") contends that the SAC adds targeted, specific factual allegations that describe a coordinated, company-wide practice of denying all Assignment of Benefits ("AOB") based appraisal demands, approved and directed at the officer and management level, undertaken with actual knowledge that such denials were unlawful, and motivated by a deliberate financial strategy to sidestep appraisal obligations on claims State Farm had underpaid. Plaintiff asserts that these added allegations address the deficiencies identified in the First Amended Complaint, that the allegations on information and belief are grounded in the facts alleged in the SAC, and that the motion should be denied as the SAC pleads specific facts establishing malice and oppression. Here, Plaintiff alleges that State Farm's denial of the Appraisal Demand submission on the grounds that the partial AOBs were invalid, in contravention to California Insurance Code section 520 and California case law providing that an

		insurer must honor an insured's benefit assignment following a loss, regardless of an anti-assignment clause in the policy was intentional and willful as State Farm knew that such denials would complicate matters for the insured and significantly delay the appraisal demand process, and would allow State Farm to evade the appraisal process and sidestep additional financial obligations of honoring an Appraisal Award on claims that State Farm had materially and deliberately underpaid to the detriment of the homeowners and Plaintiff. (SAC, ¶¶ 12-17, 48.) The SAC also alleges that from December 28, 2023, through April 18, 2024, State Farm denied or refused to honor 23 separate valid Appraisal Demands submitted by Jarvis pursuant to irrevocable AOBs executed by its insureds; that upon information and belief, State Farm engaged in a coordinated, company-wide practice or policy of rejected appraisal demands whenever presented under an AOB; that upon information and belief, State Farm management, officers, or directors instituted, directed, authorized or ratified this practice, communicated this practice to adjusters and staff, and encouraged or required adjusters to deny AOB-based appraisal demands regardless of merit or entitlement; and that State Farm knew that its blanket denials were unlawful, contradictory to established law, and that such denials would deprive assignees and insureds of the statutorily and contractually available appraisal remedy, yet State Farm systematically denied the demands to avoid payment of valid claims and appraisal awards. (SAC, ¶¶ 49-52.) It is additionally alleged that upon information and belief, State Farm's repeated denials were not legitimate coverage defenses in good faith but were motivated by an improper financial interest and by the desire to impose delay, expenses, and litigation costs on assignees and insureds to coerce inferior settlements or no payment; that State Farm's wrongful denials were part of a continuing pattern and practice affecting multiple insureds and contractors, demonstrating a deliberate course of conduct; and that State Farm took affirmative steps to conceal, obscure, or minimize the legal significance of the AOBs by issuing form denial communications that mischaracterized the legal effect of an insured's post-loss assignment, failing to identify or cite any bona fide legal authority supporting the denials, and failing to disclose internal directives or rationale given to claim handlers that guided the wrongful practice. (SAC, ¶¶ 53-55.) The SAC further alleges that the employee/adjusters at State Farm that denied these appraisals had authorization to do so from management, directors, and officers of State Farm, and that State Farm's system of repeated denials, approved and coordinated by directors, officers, and management, and communicated and directed to adjusters on the 23 claims at issue, shows despicable conduct. (SAC, ¶¶ 57, 60.)
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		Based on the foregoing, the SAC alleges facts showing despicable conduct that was carried on by State Farm with a willful and conscious disregard of Plaintiff's rights under the partial AOBs, and of the insureds, sufficient to establish malice or oppression to support a claim for punitive damages against a corporation. The allegations made on "information and belief" are supported by factual allegations, i.e., State Farm's denial or refusal to honor 23 separate valid Appraisal Demands, leading Plaintiff believe the allegations to be true. Additionally, State Farm cites to no authority requiring that a pleading identify an officer, director, or managing officer by name. The added allegations in the SAC sufficiently allege authorization and/or ratification by State Farm on the part of officers and/or directors and/or managing agents based on a coordinated, company-wide practice or policy of rejected appraisal demands whenever presented under an AOB. State Farm's motion to strike is DENIED. State Farm to file and serve an Answer within 10 days. The Case Management Conference is continued to September 3, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
108	Castillo vs. Aesthetic Management Partners, 25-01521920	<i>Off-Calendar.</i>
109	Cervantes vs. Verdin, 24-01418094	Plaintiffs Juan Cervantes, Glendi Felix, Lucio Perez Lara, Martin Ramirez, Guadalupe Ramirez, Hector Mendez Rama, Alberto Ivan Mendez Rama, Ever Antonio Franco Zelaya, Sandy Yanet Avalos Ríos, Filiberto Lopez, Raul Mojica, Salvador Nava Ceja, Oscar Campos, Deiby Noe Medrano Franco, Delvina Franco Zelaya, Rosa Franco, Carlos Daniel Franco Zelaya, Ana Griselda Franco, Priscilla Mejia, Melquiades Gregorio, Victor Sanchez, Joel Mojica, David Kenduck, and Jacob Vernezobre ("Plaintiffs") move for summary judgment against defendant Jonathan Verdin d/b/a Achilles Investments LLC ("Defendant") on their causes of action for fraud/intentional misrepresentation and breach of written contract. On January 15, 2026, plaintiff Juan Cervantes's Motion to Deem Facts Admitted was GRANTED and his Requests for Admission, Set One, to Defendant were deemed admitted. The admissions establish that Defendant entered into written contracts with Plaintiffs and promised multiple returns on their investments, Defendant received money pursuant to

		those contracts, Defendant never invested the money or obtained the promised return, and Defendant knew when he entered into the contracts that he could not guarantee any return on investments made in the stock market. They further establish that Defendant had no intent to invest the money received from Plaintiffs, he used the money received from Plaintiffs for purposes other than those represented in the contracts, and his actions caused Plaintiffs financial loss in the full amount as alleged in the Complaint. Plaintiffs have shown that Defendant fraudulently induced them to enter into the contracts underlying their Complaint, Defendant breached those contracts by failing to obtain the promised returns and make payments to Plaintiffs as agreed, and Defendant's conduct has damaged Plaintiffs. Thus, Plaintiffs have carried their burden of proving the elements of their causes of action. (Code Civ. Proc., § 437c(p)(1).) Defendant has failed to raise any triable issue of a material fact as to the causes of action or any defenses. Thus, Plaintiffs are entitled to summary judgment as a matter of law. In light of the above, the Motion for Summary Judgment is GRANTED. Plaintiffs are ordered to prepare the appropriate order and judgment. <i>Moving party to give notice.</i>
110	LUC vs. MAI, 26-01568185	<i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>
111	Rask vs. County of Orange, 25-01495933	On June 12, 2026, the Court continued the hearings on three motions: (1) Motion to Stay Proceedings; (2) Demurrer to First Amended Complaint; and (3) Motion to Strike Portions of FAC. (ROA 93.) The hearings were continued because they necessarily required the Court to review the First Amended Complaint, which is not in the file. Plaintiff was ordered to file a copy of the FAC no later than 9 court days prior to the continued hearings, which Plaintiff did not do. Accordingly, the Court sets an OSC re: dismissal for failure to prosecute for September 17, 2026 at 1:30 p.m. in Department W15. Plaintiff is ORDERED to file a response no later than 9 court days before the hearing. The Court CONTINUES the hearings on the above three motions to September 17, 2026 at 1:30 p.m. in Department W15. No further briefing is allowed.

		Finally, the Court stays the remainder of the action pending the resolution of the motion to stay proceedings. <i>Moving Defendants to give notice.</i>
112	Space Exploration Technologies Corp. vs. Enteshari, 23-01365637	On 12/12/2025 Defendants filed the following Motions which were originally set for hearing on 6/25/2026: (ROA 169) Defendant Ali Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. (ROA 181) Defendant Amin Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. (ROA 185) Defendant Amin Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Special Interrogatories, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. (ROA 189) Defendant Ali Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Special Interrogatories, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. Additionally, on 4/10/2026 Plaintiff filed the following Motions: (ROA 203) Plaintiff Space Exploration Technologies Corp. ("Plaintiff") will and hereby does move this Court pursuant to California Code of Civil Procedure section 2031.310(a) for an order compelling Defendant Ali Enteshari ("Defendant") to provide further responses to Plaintiff's Third Set of Requests for Production of Documents, Numbers 67 68, 71-76, and 78. Plaintiff also moves for sanctions against Defendant his counsel at Bernstein Law PC pursuant to California Code of Civil Procedure §§ 2031.310(h) and 2023.050(a)(3), in the amount of \$2,000. (ROA 207) Plaintiff Space Exploration Technologies Corp. ("Plaintiff") will and hereby does move this Court pursuant to California Code of Civil Procedure section 2031.320(a) for an order compelling Ali Enteshari ("Defendant") to comply with his response to Plaintiff's requests for production of

		documents, set one, numbers 22, 43, and 48-49, and set two, numbers 58-60 and 61-66. Plaintiff also moves pursuant to California Code of Civil Procedure sections 2031.320(b) and 2023.050(a)(3) for sanctions in the amount of \$5,000 against Defendant and his counsel at Bernstein Law PC, jointly and severally. Notably, on 6/1/2026 pursuant to a Plaintiff's Ex Parte, Judge Hesseltine advanced ROAS 203, 207 to be heard on 6/25/2026. (See ROA 225). Thereafter, on 6/25/2026 this Court ordered lead counsel to meet and confer and file a joint separate statement nine court days prior to the continued hearing date of 7/23/2026. To that end, on 7/20/2026 counsel submitted the joint separate statement. (ROA 315.) As to the six (6) Motions, it appears there are only twelve (12) total issues to be resolved by this Court. <i>Plaintiff's Motion to Compel Ali Enteshari to Provide Further Responses to Requests for Production, Set Three (ROA 23)</i> On receipt of the response to a document demand, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth specific facts showing good cause justifying the discovery, and it must be accompanied by a separate statement. (Code Civ. Proc., § 2031.310, subd. (b); Cal. Rules of Court, rule 3.1345.) To establish "good cause," the burden is on the moving party to show both: • Relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case); and • Specific facts justifying discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). <i>(Glenfed Develop. Corp. v. Sup.Ct. (National Union Fire Ins. Co. of Pittsburgh, Penn.) (1997) 53 Cal.App.4th 1113, 1117; see also Kirkland v. Sup.Ct. (Guess?, Inc.) (2002) 95 Cal.App.4th 92, 98.)</i> If good cause is shown by the moving party, the burden is then on the responding party to justify any objections made
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to document disclosure. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98].)

In this instance, the remaining RPD at issue is No. 76.

RPD No. 76: The accounting software file for VSAT PLUS, produced in native format (e.g., .QBW, .SAJ, .SCV).

Defendant objected on several grounds: privileged tax information; overly broad, vague, and ambiguous; protected by the attorney-client privilege and attorney work product doctrine; and “accounting software file” is vague and ambiguous.

Defendant also responded: “Discovery is continuing and Responding party reserves the right to amend/supplement this response once new documentation, if any, is ascertained.”

Plaintiff sets forth good cause, explaining that the native accounting file for Defendant Ali Enteshari’s wholly-owned business, Defendant VSATplus International, Inc., is relevant to show Defendants’ profits from reselling Plaintiff’s stolen property, including any connection to the Dubai-based entity that supposedly bought most of the kits for unreasonably low prices. Plaintiff also establishes specific facts justifying discovery because Plaintiff asked for Defendant’s profit information in straightforward interrogatories asking how much Defendant paid for each kit and how much they resold it for, but Defendant omitted a large number of purchases that Plaintiff knows exist because they show up in other documents Defendants produced. (See 4/10/26 Haj Decl. ¶ 4.)

Therefore, the burden shifted to Defendant to justify his many objections.

Defendant’s sole position is that he has agreed to produce responsive documents within their possession, custody, or control.

However, it remains unclear whether Defendant will produce the documents as a whole, or whether they will withhold some on the basis of the aforementioned objections. As such, Defendants have not sustained their burden and the Motion is GRANTED as to No. 76.

Defendant to provide further responses within 15 days.

Defendants’ Requests for Production, Set One (ROAs 169, 181)

RPD No. 5: Produce the "company policy" referenced by YOU in Paragraph 9 of YOUR FAC.

Plaintiff objected RPS is unreasonably vague, ambiguous, and unintelligible; not relevant nor reasonably calculated to lead to the discovery of admissible evidence.

Plaintiff also responded: Subject to and without waiving the foregoing objections, Responding Party responds that it is common knowledge that Plaintiff is the exclusive manufacturer of Starlink kits.

As to good cause, Defendants seem to argue that a further response is necessary because SpaceX placed the "company policy" at issue in its own pleading.

Indeed, in the FAC, Plaintiff pleads:

"9. As part of its company policy, and to control access to its technology, Plaintiff maintains exclusive control over the manufacture of the Starlink kits that are used to connect to the satellite network. Plaintiff also directs most kit sales, and the vast majority of retail purchases of new and refurbished Starlink kits are completed directly through Plaintiff's website."

(ROA 61.)

However, simply referring to a company policy does not make it "at issue". Defendants fail to establish any cause of action (or defense) is based on or relevant to the company policy or why evidence relating to the policy is necessary herein.

As such, Defendants have not set forth good cause, and the Motion is DENIED as to RPD No. 5.

RPD 6: Produce all DOCUMENTS, including COMMUNICATIONS, which evidence, reference, mention, reflect, record, and/or otherwise concern the "company policy" referenced by YOU in Paragraph 9 of YOUR FAC.

DENIED for same reason.

RPD 7: Produce all DOCUMENTS, including COMMUNICATIONS, which evidence, reference, mention, reflect, record, and/or otherwise concern how YOU "control access to [YOUR] technology" as referenced by YOU in Paragraph 9 of YOUR FAC.

DENIED for same reason.

RPD 16: Produce all DOCUMENTS, including COMMUNICATIONS, which evidence, reference, mention,

reflect, record, and/or otherwise concern company policies and procedures in place in July 2023, to prevent fraudulent transactions such as those YOU allege against ALI in this matter.

Plaintiff's Objections: calls for information that is neither relevant nor reasonably calculated to lead to the discovery of admissible evidence; unreasonably overbroad; vague, ambiguous, and unintelligible; protected by the attorney-client privilege or the attorney work-product doctrine, or both.

As to good cause, Defendants seem to argue that the policies and procedures SpaceX had in place for detecting, reviewing, rejecting, or processing the transactions at issue are directly relevant to SpaceX's allegations, Defendants' defenses, and the reliability of SpaceX's investigation and conclusions.

However, Defendants have not actually established how fraud prevention policies are relevant to the Plaintiff's causes of action. Indeed, it would seem that fraud-prevention measures are irrelevant to whether Defendants knew they were buying Plaintiff's stolen property.

As such, Defendants fail to establish good cause for the above information and as such, the Motion is DENIED as to RPD 16.

RPD 17: Produce all DOCUMENTS, including COMMUNICATIONS, which IDENTIFY all PERSONS responsible for enforcing YOUR company policies and procedures in July 2023, to prevent fraudulent transactions such as those YOU allege against ALI in this matter.

Motion as to RPD No. 17 is DENIED for same reason.

Defendants Special Interrogatories, Set One (ROA 185, 189)

Code Civ. Proc. § 2030.300(a) provides, "On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete...(3) An objection to an interrogatory is without merit or too general."

Notably, if a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the interrogatories. [*Coy v. Sup.Ct. (Wolcher)* (1962) 58 C2d 210, 220-221, 23 CR 393, 398; *Fairmont Ins. Co. v. Sup.Ct. (Stendell)* (2000) 22 C4th 245, 255.]

No. 5 DESCRIBE IN DETAIL the "company policy" referenced by YOU in Paragraph 9 of YOUR FAC.

Plaintiff's Response is summarized as: interrogatory is not full and complete in itself and refers to other documents and information not contained in the interrogatory; vague and ambiguous; calls for information that is neither relevant nor reasonably calculated to lead to the discovery of admissible evidence. Subject to and without waiving the foregoing objections, Responding Party further responds that Plaintiff provides a high speed, low latency internet service through a constellation of satellites to its customers around the world, called Starlink. To access internet through Starlink, a customer must purchase a Starlink kit, which are manufactured exclusively by Plaintiff.

Plaintiff explains the "policy" referenced in requests 5 and 6 is Plaintiff's policy of controlling access to its technology—which policy has no relevance here because Defendants are not accused of infringing Plaintiff's patents or other intellectual property rights. Defendants are instead accused of buying internet receiver kits they knew or should have known had been stolen from Plaintiff. Plaintiff's policy of controlling its own technology has nothing to do with those claims.

Plaintiff, who has the burden, has not established the law relating to relevancy—but does argue the information is not relevant.

The Court interposes here to note that Courts have construed the discovery statutes broadly so as to uphold the right to discovery wherever possible. [*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 377-378.] Although very broad, the right to discovery is not absolute. The information sought must be (1) not privileged, (2) be relevant to the subject matter of the action, and (3) either itself admissible or "reasonably calculated to lead to the discovery of admissible evidence." CCP § 2017.010.

Arguably, if the company policy was relevant enough to be referred to in the FAC (and SAC), it may be relevant enough to be described as requested by Defendants.

Plaintiff's response that it provides a high speed, low latency internet service, does not explain its company policy. Rather, it explains Plaintiff's product/service.

As such, Motion is GRANTED as to Special Rog No. 5.

Special Rog No. 6: DESCRIBE IN DETAIL how YOU "control access to [YOUR] technology" as referenced by YOU in Paragraph 9 of YOUR FAC.

Motion is GRANTED as to No. 6 for the same reason as No. 5.

Special Interrogatory No. 10 IDENTIFY all PERSONS who made "reported [purchases] as fraudulent by the card holder" as alleged by YOU in Paragraph 13 of YOUR FAC.

FAC¶13 is set forth below:

"13. Plaintiff eventually learned that the purchases made in Ali's name were completed using third-party credit card information without the card holder's authorization. After the Entesharis received the kits, the purchases were reported as fraudulent by the card holder. The card issuers eventually reversed the payments to Plaintiff, but only after Plaintiff had shipped the goods and the Entesharis had received them. Plaintiff was left with nothing in exchange for its valuable products."

Plaintiff summarized response was as follows: Premature. Discovery is still ongoing, and Defendants have not yet responded to Plaintiff's recent discovery requests or appeared for deposition; vague and ambiguous; violates third-party privacy rights. Responding Party further responds that the accounts opened in Ali's name, variations of Ali's name, Miesel Castillo's name, or the names of others, but with shipping addresses that resulted in Defendants obtaining possession of the kits, starting in or around the summer of 2023, used different credit card information and different contact information in connection with each purchase. The credit-card issuer for those transactions notified Plaintiff's credit-card processor that the card holders had not authorized those transactions, which resulted in the issuer and processor reversing the charge. Plaintiff's understanding and belief, based on its experience with standard business practices, is that the credit-card issuer's account holder is the person who would have reported the charges as fraudulent or unauthorized. Plaintiff is not aware of the names of those persons at this time.

It appears Plaintiff's response provides all the information it has on the requested topic. Further information may need to come from other sources.

Motion is DENIED as to Special Rog No. 10.

Special Interrogatory No. 11: STATE ALL FACTS supporting YOUR allegation that "new accounts were opened (in Ali's name, variations of Ali's name including misspellings and changed middle initials, and in the name of others) and used to place orders for shipment to various addresses in the Southern California area that appeared linked to the Entesharis, including their Rockrose Way residential address

and a warehouse they had contracted to receive shipments” as alleged by YOU in Paragraph 14 of YOUR FAC.

Motion is DENIED as to Special Rog No. 11 for the same reason as No. 10.

Special Interrogatory No. 14: DESCRIBE IN DETAIL all company policies and procedures in place in July 2023, to prevent fraudulent transactions such as those YOU allege against ALI in this matter.

Plaintiff’s summarized response: calls for information neither relevant nor reasonably calculated to lead to the discovery of admissible evidence; burdensome and harassing; attorney-client privilege or the attorney work-product; seeks confidential business information.

In the meet and confer efforts, Defendants agreed to narrow this interrogatory to the period July 2023 through April 2024, and to fraud prevention/access-control policies and personnel actually involved in detecting, rejecting, reviewing, or processing the transactions attributed to Defendants.

In terms of relevance, Plaintiff argues that the procedures make no difference to whether the kits were stolen in the first instance or any disputed issue.

Plaintiff does not address relevancy law, or really establish why this information couldn’t lead to discovery of admissible evidence.

Plaintiff also argues anti-fraud measures are commercially sensitive because they would provide a blueprint for other potential thieves who want to realize outsized profits from reselling stolen goods.

Defendants argue that they are entitled to understand the factual procedures SpaceX contends were in place to prevent or detect those transactions, at least as applied to the transactions at issue.

They also assert that they do not seek unrelated confidential business information. But what about “related” confidential business information.

To the extent Plaintiff has anti-fraud measures (policies and procedures) that are commercially sensitive and disclosing those measures could jeopardize the safety of Plaintiff, it would seem they are not sufficiently relevant to compel disclosure.

Motion is DENIED as to No. 14.

		<i>Special Interrogatory No. 15 IDENTIFY all PERSONS charged with enforcing YOUR company policies and procedures in July 2023, to prevent fraudulent transactions such as those YOU allege against ALI in this matter.</i> Motion is DENIED as to No. 15 for the same reasons. SANCTIONS: Plaintiff's requests sanctions for Defendants' clear abuse of the discovery process. Plaintiff argues its motions to compel and compel further were almost entirely successful, and would have been avoided entirely if Defendants had made themselves available to meet and confer in response to Plaintiff's outreach on February 10, 12, 17, 20, 26, and March 4, 2026. (See 4/10/26 Haj Decls. ISO Motions to Compel at Ex. 1.) Plaintiff further argues that Defendants' four motions, were almost entirely abandoned— they moved on 128 unique requests, but did not even try to defend 114 of them after this Court ordered the parties to further meet and confer. If Defendants had limited their motions to the 14 [sic] requests listed above, the parties and this Court would have conserved an immense amount of resources. Defendants argue that the substantial narrowing of the parties' disputes is not evidence of discovery abuse—it is the direct result of the process this Court ordered the parties to undertake. Following the Court's Tentative Ruling, the parties engaged in extensive additional meet and confer efforts, exchanged information, clarified their respective positions, and resolved the overwhelming majority of the disputed requests. Given that counsel took this Court's order to meet and confer seriously, and narrowed the discovery issues from hundreds of requests to just twelve [12], the Court will not impose sanctions. <i>Plaintiff to give notice.</i>
200	CRLA Southern California vs. Saddleback Valley Unified School District, 26-01556345	<i>Parties should contact clerk for tentative ruling.</i>
201	Loera vs. United Parcel Services Inc, 24-01420618	Plaintiff Natalie Victoria Loera moves to compel Defendant Abraham Cruz to provide further responses and a production in response to Requests for Production, Set Two, Nos. 53-56. The requests at issue seek any sub-rosa Defendant has of Plaintiff; any investigation videos of Plaintiff; any written

		report regarding any surveillance of Plaintiff; and any investigation reports of Plaintiff. (Goncuian Decl., Exh. 1.) Defendant objected to each of these requests on various grounds, including on the grounds that the requested items are protected by the work product doctrine. Plaintiff also attached a privilege log which indicates that Plaintiff withheld "Surveillance of Plaintiff Natalie Loera at or near 3212 West Ravenswood Dr., Anaheim, CA 92804, on April 14-15, 2024." (Goncuian Decl., Exh. 2.) In Defendant's opposition, counsel explains that "the surveillance was conducted specifically at the direction of defense counsel, with counsel's guidance, at the expense of Defendants, and the strategies and information used to capture the surveillance resulted from the impressions, conclusions, opinions, or legal research or theories of defense counsel. The corresponding written reports reflect counsel's 'Impressions, conclusions, opinions, or legal theories' and are therefore considered absolute work product." (Oppn at 7:9-14.) In <i>Suezaki v. Superior Court</i> (1962) 58 Cal.2d 166, the Supreme Court held that surveillance video of a plaintiff in a personal injury action fell within the "qualified" work product protection. The court did not hold that surveillance footage is as a matter of law subject to discovery. (<i>Id.</i>, at p. 178.) Rather, the court remanded the case to the trial court to exercise its discretion in determining whether or not such footage should be produced. (See <i>id.</i>, at pp. 178-79.) Attorney work product protection is now governed by Code of Civil Procedure Section 2018.030. Under the statute, "[a] writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances." (Code Civ. Proc., § 2018.030, subd. (a).) Further, "[t]he work product of an attorney, other than a writing described [above], is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." (Code Civ. Proc., § 2018.030, subd. (b).) Surveillance footage of Plaintiff, taken at the direction of defense counsel and with defense counsel's guidance is subject to qualified work product protection. Plaintiff contends that denial of an order compelling the footage will unfairly prejudice her because the footage may be enhanced, edited or distorted and not having the opportunity to examine the video prior to trial will preclude Plaintiff's counsel from having adequate time to prepare a proper cross examination. (Mtn. at 10:10-16.) Plaintiff further contends that written surveillance reports created by
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		the investigator are also necessary to evaluate what editing an investigator has performed on the surveillance footage, and is necessary for Plaintiff to be able to fully evaluate whether the surveillance footage accurately captures Plaintiff on a particular day. (Mtn. at 10:17-23.) Plaintiff's arguments are not compelling. The same argument could be made of any evidence offered for impeachment purposes. Further, Defendant has already disclosed the date and location of the footage, and Plaintiff, as its subject, should already be aware of her own actions. <i>Accordingly, the motion is DENIED.</i>
202	Maple Iron Grove LLC vs. Hudson, 25-01453870	Fortra Law through Steven Ernest (Counsel for MAPLE IRON GROVE LLC) seeks an order relieving it from acting as counsel of record. (ROA 103) All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney Steven E. Ernest appears to demonstrate good cause for granting the motion based on the allegations that there has been an irrevocable breakdown in the relationship which prevents Fortra Law from continuing to represent the client. Thus, the Motion to Be Relieved as Counsel of Record filed by Fortra Law through Steven Ernest is GRANTED. Attorney to update the proposed order (ROA 104) to delete past law and motion dates and include any new dates. Attorney is relieved as counsel of record upon filing the proof of service of the order. <i>Moving attorney to give notice.</i>
203	KHATSKO vs. OVCHAROV, 26-01572047	Plaintiff Vitali Khatsko ("Plaintiff") applies for right to attach orders and orders for issue of writs of attachment against defendants Dmitry Ovcharov and Zorka Impex, Inc. (together, "Defendants"). "Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Proc., § 483.010(a).) Pursuant to section 484.090(a), "[a]t the hearing, the court shall consider the showing made by the parties appearing and shall issue a right to attach order, which shall state the amount to be secured by the attachment determined by the court in accordance with Section 483.015 or 483.020, if it finds all of the following:

		(1) The claim upon which the attachment is based is one upon which an attachment may be issued. (2) The plaintiff has established the probable validity of the claim upon which the attachment is based. (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based. (4) The amount to be secured by the attachment is greater than zero.” Plaintiff argues he has shown a probable validity of prevailing on his causes of action for breach of written and oral contract against Ovcharov because Ovcharov’s Telegram messages requesting and confirming each advance, the Alibaba.com order confirmations, and Ovcharov’s later written acknowledgements of the debt constitute a written contract between himself and Ovcharov. The Telegram messages upon which Plaintiff relies are submitted in a foreign language with no translation. California Rules of Court, rule 3.1110(g) provides: “Exhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter.” Because the Telegram messages are not accompanied by an English translation by a qualified interpreter, they are inadmissible. The Alibaba.com order confirmations are emails from Alibaba Customer Service to Plaintiff regarding various payments and orders. Nothing in those emails evidences the existence of any contract between Plaintiff and Ovcharov. Exhibit 12 is a May 4, 2026 email from an attorney, Pavel Kolmogorov, on behalf of Zorka Impex in response to Plaintiff’s May 1 letter. In that letter, Mr. Kolmogorov asserts that “the obligation at issue” is that of Zorka Impex and not Ovcharov individually and that Zorka Impex “confirms that it has an outstanding financial obligation to Mr. Vitali Khatsko arising from payments made by him in January-February 2023 that were used to fund inventory purchases for Zorka Impex, Inc.’s business operations.” Mr. Kolmogorov proposed that Zorka Impex and Plaintiff enter into a formal written loan agreement to resolve the matter and avoid litigation. This letter does not establish the existence of any contract between Plaintiff and Ovcharov. Because Plaintiff has failed to demonstrate the existence of any express or implied contract with Ovcharov, the application as to Ovcharov is DENIED. The Court finds that the May 4 letter does, however, demonstrate that Zorka Impex at least impliedly promised to repay the alleged debt in the principal balance of \$42,948.08
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		alleged in the Complaint, which can support a right to attachment. In <i>Klein v. Benaron</i> (1967) 247 Cal.App.2d 607, the Court of Appeal held that an attachment was proper despite the nonexistence of any express or implied in fact contract where the facts revealed that the plaintiff had delivered \$50,500 due to the defendant's misrepresentations and broken promises. (Id. at p. 610 ["the first cause of action is one in fraud . . . but its facts . . . presents [sic] a case where the law implies a promise on defendant's part to repay it."].) Further, Plaintiff's cause of action for unjust enrichment can support an attachment. (See <i>Santa Clara Waste Water Co. v. Allied World Nat. Assurance Co.</i> (2017) 18 Cal.App.5th 881, 886 [affirming attachment based on unjust enrichment claim].) Here, the May 4 letter demonstrates that Plaintiff conferred a benefit on Zorka Impex and that Zorka Impex has acknowledged the indebtedness and it would be inequitable to allow Zorka Impex to retain the benefit. Thus, the Court finds that Plaintiff has established the probable validity of its unjust enrichment claim against Zorka Impex and that claim is one upon which attachment may be issued. Further, the amount to be secured by the attachment is greater than zero and the Court finds that the attachment is not sought for any purpose other than recovery on Plaintiff's claim. In light of the above, Plaintiff's Application for Right to Attach Order and Order for Issue of Writ of Attachment as to Zorka Impex is GRANTED in the amount of \$42,948.08. Plaintiff shall file an undertaking of \$10,000. (Code Civ. Proc., § 489.220(a).) <i>Moving party to give notice.</i>
204	Geraci Legal Corporation vs. BriteCity, LLC, 25-01523031	<u>Demurrer</u> Defendants Britecity, LLC, Chad Gniffke, and Scott Senerchia ("Defendants") demur to all twelve causes of action asserted in Plaintiffs Geraci Legal Corporation and Geraci LLP's Complaint. Initially, Defendants assert that Plaintiffs are barred from pursuing this action based on the sham pleading doctrine. Per Defendants, Plaintiffs pled inconsistent facts in a prior action, <i>Anthony Geraci v. Geraci LLP et al.</i> Orange County Superior Court Case No. 25-01500841 ("First Geraci Action"). Specifically, Defendants contend that the complaint in the First Geraci Action involved the same www.geracillp.com domain name that Plaintiffs contend Defendants herein converted; yet, the complaint in the First Geraci Action effectively pled that Plaintiffs do not own the domain name. (Dem. at 1:15-2:2.)

		Under the sham pleading doctrine, if a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations. (<i>Zakk v. Diesel</i> (2019) 33 Cal.App.5th 431, 447.) The doctrine can also be invoked as against a party's prior pleading in other cases. As set forth in <i>Cantu v. Resolution Trust Corporation</i>: "Both trial and appellate courts may properly take judicial notice of a party's earlier pleadings and positions as well as established facts from both the same case and other cases. The complaint should be read as containing the judicially noticeable facts, even when the pleading contains an express allegation to the contrary. A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false. Likewise, the plaintiff may not plead facts that contradict the facts or positions that the plaintiff pleaded in earlier actions or suppress facts that prove the pleaded facts false. "The principle is that of truthful pleading. When the plaintiff pleads inconsistently in separate actions, the plaintiff's complaint is nothing more than a sham that seeks to avoid the effect of a demurrer. Under such circumstances, the court will disregard the falsely pleaded facts and affirm the demurrer." (<i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 877-878 (internal citations omitted) (emphasis in original).) Here, the complaint in the First Geraci Action does not specifically identify the domain names that were in dispute. Paragraphs 30 and 56 only reference the "website" or the "GERACI LLP website" without identifying the domain. (Defts. RJN, Exh. A, ¶¶ 30, 32, 56.) Further, the Geraci LLP involved in the first Geraci lawsuit was a California limited liability partnership, whereas the Geraci LLP involved in this case is an Arizona limited liability partnership. (Compare, Compl. ¶2 to Defts. RJN, Exh. A, ¶4.) Thus, they are not the same entities. There is thus no basis for the Court to conclude that the domain names at issue in both actions are the same. Additionally, as Geraci LLP was only a defendant (not a plaintiff) in the First Geraci Action, even if it were the same entity, the sham pleading doctrine could not be invoked against it based on allegations that it did not plead in the prior complaint.
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First Cause of Action (Intentional Interference with Prospective Economic Advantage)

Defendants' demurrer to the first cause of action for intentional interference with prospective economic advantage is SUSTAINED with leave to amend for uncertainty. It is impossible to tell from the allegations what each individual Defendant is alleged to have done.

Second Cause of Action (Fraud)

For causes of action for intentional misrepresentation, each element must be pled with specificity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The particularity requirement necessitates pleading facts that show how, when, where, to whom, and by what means the representations were tendered. (*Ibid.*) Plaintiffs' pleading does not include allegations sufficient to meet this heightened pleading requirement.

Defendants' demurrer to the second cause of action is SUSTAINED with leave to amend.

Third, Fourth, Fifth, Sixth, Seventh, and Tenth Causes of Action (Conversion, Theft, Trespass to Chattels, Slander of Title, Cal. Penal Code § 502, and Cal. Penal Code § 496)

Defendants demur to the third through seventh and tenth causes of action on the grounds that Plaintiff cannot allege ownership of the domain. This argument is based on Defendants' contention that the complaint in the First Geraci Action pled that Plaintiffs herein did not own the domain name at issue in this action. For the reasons discussed above, the Court does not make that finding.

Accordingly the demurrer to the third through seventh and tenth causes of action is OVERRULED.

Ninth Cause of Action (Intentional Interference with Contractual Relations)

"The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126 (internal citations omitted).)

Here, Plaintiffs do not deny that they have not pled a contractual relationship.

Accordingly, the demurrer to the ninth cause of action is SUSTAINED with leave to amend.

Eighth Cause of Action (Unfair Competition (Bus. & Prof. Code § 17200))

Defendants contend that the eighth cause of action for unfair competition fails because Plaintiffs fail to allege any unlawful, unfair or fraudulent business practices with particularity against each of the Defendants. Further, Defendants contend that the pleading does not allege any injury or damage because Plaintiffs cannot claim ownership in the underlying websites and domains.

"A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619.)

Plaintiffs have not met the particularity requirements. The complaint only contains conclusory allegations that "Defendants engaged in unlawful, unfair, and fraudulent business practices, including the conduct alleged herein, such as redirecting the Domains to create false affiliations and consumer confusion." (Compl. ¶ 45.)

The demurrer to the eighth cause of action is SUSTAINED with leave to amend.

Eleventh Cause of Action (Trademark Infringement)

Defendants contend that the eleventh cause of action for trademark infringement fails because the complaint in the First Geraci Action alleged that Geraci's former partners were using the subject intellectual property without authorization; therefore, Plaintiffs herein cannot assert that the same intellectual property (the domain name) is being redirected by Defendants.

As discussed above, the Court is unable to find, based on the sham pleading doctrine, that the domain name in this case was also the subject of the First Geraci Action.

The demurrer to the eleventh cause of action is OVERRULED.

Twelfth Cause of Action (Breach of Fiduciary Duty)

In California, "[t]he elements of a claim for breach of fiduciary duty are (1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach." (*O'Neal v. Stanislaus County Employees' Retirement Assn.* (2017) 8 Cal.App.5th 1184, 1215.)

Here, Plaintiffs have alleged that "BRITECITY, LLC, previously provided IT services to Plaintiffs or related entities, during

		which time they gained access to and knowledge of the Domains, including registration details, redirects, and associated digital infrastructure. This relationship imposed fiduciary duties on Defendants to act in Plaintiffs' best interests regarding the Domains." (Compl. ¶ 11.) Defendants contend that, based on the complaint in the First Geraci Action, Defendants provided IT services to the California entity; and not to either of the Plaintiffs in this action. Therefore, Defendants contend, there was no fiduciary relationship. The Court declines to find that the allegations of the complaint in the First Geraci Action preclude a finding that Defendants herein provided IT services to Plaintiffs herein. The demurrer to the twelfth cause of action is OVERRULED. Defendants' request for judicial notice of the Complaint in the first Geraci action is GRANTED pursuant to Evid Code §452(d). Plaintiffs' request for judicial notice is DENIED as immaterial to the disposition of these motions. <u>Motion to Strike</u> Defendants move to strike the following portions of the Complaint: • Paragraph 18 (p. 4:17): "Defendants' actions were willful, malicious, and oppressive, warranting punitive damages." • Prayer for Relief (p. 8:14): "For punitive and exemplary damages;" The motion to strike is GRANTED with leave to amend. For the reasons discussed above, Plaintiffs have failed to plead fraud. Further, there are no factual allegations to support malice or oppression. Plaintiffs shall have 20 days leave to amend. <i>Defendants to give notice.</i>
205	Bank of America, N.A. vs. Alves, 25-01474865	Defendant Jacqueline D. Alves moves to set aside the entry of default against defendant and co-trustee James J. Alves pursuant to Code of Civil Procedure section 473(b) and (d). As an initial matter, the Court notes that Jacqueline has submitted this motion on behalf of James because James is currently out of the state. However, Jacqueline is not a licensed attorney. Ordinarily, one party acting in pro per may

		not represent another party in that action and an attempt to do so would constitute the unauthorized practice of law. (<i>J.W. v. Superior Court</i> (1993) 17 Cal.App.5th 958, 966.) However, the Court notes that Jacqueline and James are spouses who have both been served as defendants. Code of Civil Procedure section 371 provides: "If spouses are sued together, each may defend for his or her own right, but if one spouse neglects to defend, the other spouse may defend for that spouse's right also." The Court finds that because James is currently out of state and has not acted on his own behalf in defense of this action, that Jacqueline's submission of the instant motion on his behalf is not improper. However, Jacqueline is admonished that future attempts to represent James in this action where he has not neglected to defend himself may be unauthorized. The court is empowered to relieve a party "upon any terms as may be just . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) Application for an order for relief "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Ibid.) Here, on September 29, 2025, Jacqueline filed an ex parte application for extension of time to serve an answer or other responsive pleading. That application was granted on October 2, 2025 and the Court ordered that a pleading must be served and filed no later than January 14, 2026. Default was entered against James upon the mistaken belief that the Court's October 2 order related to James's deadline to file a responsive pleading as well as Jacqueline's. The instant motion was timely filed shortly after the default was discovered. Based on the above, the Court finds that the default was entered as a result of mistake. The motion to set aside is therefore GRANTED. James is ORDERED to file an answer or other responsive pleading within 20 days. The Case management Conference is continued to September 24, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
206	Hoshour vs. Montgomery, 24-01392447	Plaintiffs David Guy Hoshour and Wensun Chen seek an order compelling Defendant Annelise Montgomery to provide further responses to Request for Production of Documents, Set 1 on October 11, 2025. (ROA 60) Plaintiffs also seek an order compelling responses to Form Interrogatories, Set One served on Defendant on October 11, 2025. (ROA 68)

These motions were filed by Plaintiffs David Hoshour and Wensun Chen, who are in pro per. (ROA 60, 68.)

Notably, in support of the Motions is a declaration by "Mark J. Kizer" who is "assisting Plaintiffs DAVID GUY HOSHOOR and WENSUN CHEN in this matter." (Declaration of Kizer para.1.) While Mr. Kizer indicates he has "personal knowledge of the facts set forth herein and could competently testify thereto", he fails to indicate how, or whether he is an attorney.

Where a response has been made to an RPD, but the demanding party is not satisfied with it, the remedy is a motion to compel further responses. [CCP § 2031.310]

This motion can be utilized to attack a response containing:

- Objections; or
- An agreement to comply that is incomplete; or
- A statement of inability to comply that is incomplete or evasive. [CCP § 2031.310(a)]

Plus, a response stating inability to comply with the CCP § 2031.010 demand shall state the following:

- That a diligent search and reasonable inquiry has been made in an effort to locate the item demanded; and
- The reason the party is unable to comply: e.g., the document:
 - never existed; or
 - has been lost or stolen; or
 - has been destroyed; or
 - is not in the possession, custody or control of the responding party, in which case, the response must state the name and address of anyone believed to have the document. [CCP § 2031.230]

Additionally, if a party to whom interrogatories are directed either fails to respond at all, or responds with objections or incomplete answers, the propounding party's remedy is to seek a court order compelling answers (or further answers) to the interrogatories. [CCP §§ 2030.290, 2030.300]

Here, on October 11, 2025 Plaintiffs served RPDS, Set 1 and Form Rogs, Set 1. (Decl. Kizer¶2.)

As to the RPDS, Defendant did not serve responses until December 16, 2025, responding only that, "I am currently not in possession of any of the requested documents."

This response does not comply with CCP § 2031.230 as set forth above.

As to the Form Rogs, Plaintiff provided no response whatsoever.

		As such, the Motions are GRANTED. Defendant to provide code compliant, supplemental, verified responses to the RPDS, Set 1 within 20 days of notice of this Court's ruling. Defendant to provide verified responses to Form Rogs, Set 1, without objections, within the same time. As to Plaintiffs' request for sanctions, sanctions are denied for failure to identify the sanctions in the notices of motion. ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Code Civ. Proc., § 2023.040.] <i>Plaintiffs to give notice</i>
207	Labor Commissioner of the State of California, Division of Labor Standards Enforcement vs. Devank, LLC, 24-01420136	James H. Millane of Lanak & Hanna, P.C. ("Moving Attorney") moves to be relieved as counsel of record for defendant Titan Construction and Development. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements of the applicable California Rules of Court are satisfied. Accordingly, the motion is GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) <i>Moving Attorney to give notice.</i>